Introduction to IT Law

Fundamentals of Data Protection Law

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Protection of Personal Data as a fundamental right in the EU

- Art 8 European Charter of Fundamental Rights

1. Everyone has the right to the protection of personal data concerning him or her.
2. Such data must be processed fairly for specified purposes and on the basis of the consent of the person concerned or some other legitimate basis laid down by law. Everyone has the right of access to data which has been collected concerning him or her, and the right to have it rectified.
3. Compliance with these rules shall be subject to control by an independent auhority.

Protection of Personal Data as a fundamental right in the EU

- Art 8 European Convention of Human Rights – Right to Privacy
  - Everyone has the right to respect for his private and family life, his home and his correspondence.
  - There shall be no interference by a public authority wiht the exercise of this right except such as in accordance with the law and is necessary in a democratic society in the interests of national security, public safety or the economic wellbeing of the country, for the prevention fo disorder or crime, for the protection of health or morals, or for the protection of the rights and freedoms of others.

General Data Protection Regulation

- General Data Protection Regulation
  - https://eur-lex.europa.eu/eli/reg/2016/679/oj/eng

General Data Protection Regulation

- Subject-matter and objectives
- Material scope
- Territorial scope

- Personal Data (art 4 par 1 GDPR)
  - Any information relating to an identified or identifiable natural person; an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier such as a name, an identification number, location data, an online identifier or to one or more factors specific to the physical, physiological, genetic, mental, economic, cultural or social identity of that natural person.

General Data Protection Regulation

- Processing of data (art 4 par 2 GDPR)
  - Any operation or set of operatons which is performed on persnal data or on sets of personal data, whether or not by autmated means, such as collection, recording, organisation, structuring, storage, adaption or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment or combination, restriction, erasure, destruction;

General Data Protection Regulation

- Profiling (art 4 par 4 GDPR)
  - Any form of automated processing of personal data consisting of the use of personal data to evaluate certain personal aspects relating to a natural person´s performance at work, economic situation, health, personal preferences, interests, reliability, behaviour, location or movements;
- https://eur-lex.europa.eu/eli/reg/2016/679/oj/eng

General Data Protection Regulation

- General principles to processing of personal data
  - Lawfulness, fairness and transparency
  - Purpose limitation
    - Exceptions
      - Archiving purposes in the public interest
      - Scientific or historical research purposes
      - Statistical purposes
  - Data minimisation
  - Accuracy
    - Right to erasure
    - Right to rectification
  - Storage limitation
  - Integrity and confidentiality
  - accountability

General Data Protection Regulation

- Lawfulness of processing
  - Consent given by the data subject for a specific purpose;
  - Processing necessariy for the performance of a transaction in which the data subject is involved
  - Processing necessary to comply with a legal obligation to which the controller is subject → law necessary

General Data Protection Regulation

- Lawfulness of processing
  - Processing necessariy to protect the vital interests of the data subject or another natural person
  - Processing necessary for the performance of an task carried out in the public interest or in the exercise of official authority vested in the controller → law necessary
  - Processing necessary for the legitimate interests pursued by the controller, except overriding contravening interests of the data subject

General Data Protection Regulation

- Restrictions for sensitive personal data
  - Processing of personal data revealing
    - Racial or ethnic origin
    - Political opinions
    - Religious or philosophical beliefs
    - Trade union membership
    - Processing of genetic data for the purpose of uniquely identifying a natural person
    - Data concerning a natural persons sex life or sexual orientation

    →**Prohibited**, unless
    - Consent
    - Necessary for reasons in the public interest and laid down by law
    - …..

    → Art 9 GDPR (https://eur-lex.europa.eu/legal-content/EN/TXT/PDF/?uri=CELEX:32016R0679)

General Data Protection Regulation

- Rights of the data subject
  - Transparent information and communication
  - Information and access to personal data
  - Right to rectification
  - Right to erasure („right to be forgotten“)
  - Right to restriction of processing
  - Right to data portability

  - Right to object
  - Automated individual decision-making, including profiling (Art 22 GDPR)

General Data Protection Regulation

- Restrictions of the rights (art 33 GDPR)
  - Rights may be restricted, when such a restriction respects the essence of the fundamental rights and freedoms and is a necessary and proportionate measure in a democratic society to safeguard:
    - National security
    - Defence
    - Public security
    - Prevention, investigation, detection or prosecution of criminal offences or the execution of criminal penalties, including the safeguarding against and prevention of threats to public security
    - Other objectives of general public interest, such as important economic or financial interest of the Union or of a MS, including monetary, budgetary and taxation matters, public health and security ……

General Data Protection Regulation

- Obligations of the controller, the data processor
- Joint controllers
- Data protection officer
- Codes of conduct

- Specific rules on the transfer of personal data to third countries or international organisations

- Supervisory authority
- European data protection board
- Remedies, liabilities and penalties